

		FUNDULEA and EUGEN FUNDULEA, as former owners of A1 QUALITY BLINDS, paid to A1 QUALITY BLINDS’s legal counsel, Schwartz Semerdjian law firm for the Build Group, Inc. litigation matters (Case No. 22LBCV00220 and Case No. 22LBCV00317). For the reasons discussed above, the Motion to Strike is DENIED as to this allegation. 11. FAC, ¶110.e., page 21, line 26, which states: “EUGEN FUNDULEA’s California Contractor’s License, No. 1009294.” For the reasons discussed above, the Motion to Strike is DENIED as to this allegation. Moving party to give notice.
106	Hamidi vs. Manheim Investments, Inc., 2020-01145159	Motion for Reconsideration – DENIED Plaintiff Khalil Rahman Hamidi (“Plaintiff”) moves for reconsideration of the court’s 02/24/2026 order granting the motion for summary judgment filed by Defendants On Demand Staffing, Inc. (“On Demand”) and John Jeffers (“Jeffers”) (collectively, “Defendants”). A motion for reconsideration must be: (1) brought before the same judge who made the order; (2) “made within 10 days after service upon the party of notice of entry of the order”; (3) based on “new or different facts, circumstances or law” than those before the court at the time of the original ruling; (4) supported by declaration stating the previous order, by which judge it was made, and the new or different facts, circumstances or law claimed to exist; and (5) made and decided before entry of judgment. (Code Civ. Proc., § 1008.) A motion for reconsideration involves a two-step process. First, if the motion meets the requirements of § 1008 (as outlined above), the court grants reconsideration. Second, the court then proceeds to the merits of the motion—which may result in reaffirmation of the

original order. (Randy's Trucking, Inc. v. Superior Court (2023) 91 Cal.App.5th 818, 844.)

The burden under § 1008 “is comparable to that of a party seeking a new trial on the ground of newly discovered evidence: the information must be such that the moving party could not, with reasonable diligence, have discovered or produced it at the trial.” (New York Times Co. v. Superior Court (2005) 135 Cal.App.4th 206, 212-213; see Garcia v. Hejmadi (1997) 58 Cal.App.4th 674, 690; California Correctional Peace Officers Ass'n v. Virga (2010) 181 Cal.App.4th 30, 47, fn. 15 (collecting cases).)

The basis for Plaintiff’s motion is the Court’s comments at the hearing on the Motion for Summary Judgment. Plaintiff’s Attorney, John C. Hatch, declares: “I am informed and believe that the Court’s ruling granting summary judgment rested on the mistaken understanding that the Court of Appeal had already reviewed the same On Demand and Jeffers evidentiary record presently at issue.”

The problem with Plaintiff’s argument is that the Court’s alleged “mistaken understanding” is not new or different facts, circumstances or law.

Additionally, Plaintiff fails to establish why, if the Court was in fact “mistaken”, Plaintiff could not present evidence and/or argument at the hearing on the summary judgment motion to correct the Court’s understanding.

That there is no basis for relief under section 1008 is acknowledged by Plaintiff’s citation to Le Francois v. Goel (2005) 35 Cal.4th 1094, 1104-1105, for the proposition that the Court can also exercise its inherent authority to correct an erroneous interim ruling before entry of judgment. Plaintiff is asking this Court to sua sponte reconsider Judge Oberholzer’s ruling. This Court declines the invitation.

Even if the Court were to grant reconsideration and review the MSJ and hearing, the ruling would not

		change as there is no indication Judge Oberholzer was “mistaken.” Rather, he acknowledged in the tentative ruling that, “the real issue is whether any of Plaintiff’s ‘new evidence’ filed in Opposition to this motion can create a triable issue of material fact as to gross negligence.” After reviewing the new evidence, he concluded that the MSJ should be granted. Nothing at oral argument persuaded him differently. Whether the court’s conclusion was or was not correct must be determined in a different way, and not by a motion for reconsideration. Defendants to give notice of this ruling and prepare a judgment based on the court’s previous order granting summary judgment.
107	Kim vs. Kim, 2021-01183125	Motion to Appoint Limited Receiver – GRANTED Plaintiff Mira Kim (“Mira”) filed a Motion for Appointment of Limited Receiver. Defendant Anna Kim opposes the motion. The court is well acquainted with the parties and their claims in this matter, having just completed a jury trial in this case. The verdict did not affect the need for the court to hear and rule on this motion, however. “A receiver may be appointed by the court in which an action or proceeding is pending, or by a judge of that court, in the following cases: (1) In an action . . . between partners or others jointly owning or interested in any property or fund, on the application of the plaintiff, . . . where it is shown that the property or fund is in danger of being lost, removed, or materially injured. . . . [¶] (6) Where a corporation is insolvent, or in imminent danger of insolvency, or has forfeited its corporate rights. . . . [¶] (9) In all other cases where necessary to preserve the property or rights of any party.” (Code Civ. Proc., § 564, subd. (b)(1), (6), (9).) “The rule is established that the appointment of a receiver rests largely in the discretion of the trial court and that its action in appointing a receiver or its refusal of an application for the appointment of such an officer